

**STATE OF VERMONT
SECRETARY OF STATE
OFFICE OF PROFESSIONAL REGULATION
BOARD OF ALLIED MENTAL HEALTH PRACTITIONERS**

IN RE:)
ROSE M. SHEEHAN) **Docket No. 2019-84**
License No. 068.0066819)

STIPULATION AND CONSENT ORDER

NOW COMES the State of Vermont, by and through Prosecuting Attorney Aaron Kisicki, and the respondent, Rose M. Sheehan, represented by Brice Simon, Esq., who hereby stipulate and agree as follows:

Authority

1. The Vermont Board of Allied Mental Health Practitioners ("Board") is authorized to issue warnings or reprimands, suspend, revoke, limit, condition, deny or prevent renewal of licenses if, after disciplinary hearings, the Board finds that a respondent has engaged in unprofessional conduct. 3 V.S.A. §§ 129, 129a, 814(d); 26 V.S.A. Chapter 65; the Administrative Rules of the Board of Allied Mental Health Practitioners; and the Administrative Rules of Practice of the Office of Professional Regulation.

Statement of Facts

2. Rose M. Sheehan ("Respondent") of St. Johnsbury, Vermont is licensed by the State of Vermont as a Licensed Clinical Mental Health Counselor under license number 068.0066819. The license was first issued on July 19, 2013, is currently active, and expires on January 31, 2021.
3. Respondent is licensed by the State of Vermont as a Licensed Alcohol and Drug Abuse Counselor under license number 151.0127849. The license was first issued on September 2, 2011, is currently active, and expires on January 31, 2021.
4. Respondent is registered with the State of Vermont as a Non-Licensed and Non-Certified Psychotherapist under registration number 097.0068640. The registration was first issued on June 23, 2010 and expired on November 30, 2014.
5. Respondent provided clinical mental health counseling services to two clients ("Client 1" and "Client 2," together "Clients") starting in or about the summer of 2016.

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6. Respondent provided counseling services to Clients in both individual and couples counseling settings.
7. In or about the fall of 2016, Respondent purchased an unfinished “tiny home” structure from Client 1 while Client 1 was Respondent’s client.
8. Client 1 terminated the counselor-client relationship with Respondent in or about February 2017.
9. Client 2 terminated the counselor-client relationship with Respondent on or about July 26, 2017.
10. In or about July 2017, Respondent arranged for and agreed to rent her home to Clients. Respondent began to rent her home to Clients without a signed lease agreement on or about July 27, 2017.
11. Respondent purchased and offered to purchase furniture owned or leased by one or both Clients while Clients were tenants in Respondent’s home.

Violation One: 3 V.S.A. § 129a(b) Failure to practice competently by reason of any cause on a single occasion or on multiple occasions may constitute unprofessional conduct, whether actual injury to a client, patient, or customer has occurred. Failure to practice competently includes: (2) failure to conform to the essential standards of acceptable and prevailing practice.

12. The State re-alleges and incorporates Paragraphs 2 through 11 above.
13. Essential standards of acceptable and prevailing practice require Respondent to avoid entering into non-professional relationships with former clients when the interaction is potentially harmful to the client. *See American Counseling Association (“ACA”) Code of Ethics § A.6.e (2014).*
14. Paragraphs 2 through 11 demonstrate that Respondent entered into non-professional relationships with Clients that were potentially harmful to Clients.
15. Essential standards of acceptable and prevailing practice prohibit Respondent from exploiting others in her professional relationships. *See ACA Code of Ethics § C.6.d.*
16. Paragraphs 2 through 11 demonstrate that Respondent exploited Clients in her professional relationships with them.
17. The act(s), omission(s), and/or circumstance(s) described above constitute grounds for discipline because Respondent has committed unprofessional in violation of 3 V.S.A. § 129a(b)(2).

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Violation Two: 3 V.S.A. § 129a(a)(12) Exercising undue influence on or taking improper advantage of a person using professional services, or promoting the sale of services or goods in a manner that exploits a person for the financial gain of the practitioner or a third party.

18. The State re-alleges and incorporates Paragraphs 2 through 11 above.
19. Respondent is prohibited from exercising undue influence on or taking improper advantage of a client in a manner that exploits a client for the financial gain of Respondent or a third party.
20. Paragraphs 2 through 11 demonstrate that Respondent exercised undue influence on or took improper advantage of Clients in a manner that exploited Clients for the financial gain of Respondent or a third party.
21. The act(s), omission(s), and/or circumstance(s) described above constitute grounds for discipline because Respondent has committed unprofessional conduct in violation of 3 V.S.A. § 129a(a)(12).

Violation Three: 26 V.S.A § 3271(a)(6) Entering into an additional relationship with a client, supervisee, research participant, or student that might impair the licensed clinical mental health counselor's objectivity or otherwise interfere with the clinical mental health counselor's professional obligations.

22. The State re-alleges and incorporates Paragraphs 2 through 11 above.
23. Respondent is prohibited from entering into an additional relationship with a client that might impair her objectivity or otherwise interfere with her professional obligations.
24. Paragraphs 2 through 11 demonstrate that Respondent entered into prohibited additional relationships with Clients.
25. The act(s), omission(s), and/or circumstance(s) described above constitute grounds for discipline because Respondent has committed unprofessional conduct in violation of 26 V.S.A. § 3271(a)(6).

Violation Four: 3 V.S.A. § 129a(a)(15) Failing to exercise independent professional judgment in the performance of licensed activities when that judgment is necessary to avoid action repugnant to the obligations of the profession.

26. The State re-alleges and incorporates Paragraphs 2 through 11 above.

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27. Respondent is required to exercise independent professional judgment in the performance of licensed activities when that judgment is necessary to avoid action repugnant to the obligations of the profession.
28. Paragraphs 2 through 11 demonstrate that Respondent failed to exercise independent professional judgment in the performance of her licensed activities that were necessary to avoid action repugnant to the obligations of the profession.
29. The act(s), omission(s), and/or circumstance(s) described above constitute grounds for discipline because Respondent has committed unprofessional conduct in violation of 3 V.S.A. § 129a(a)(15).

Understandings

30. Respondent understands that the Board must review and accept the terms of the Consent Order. The entire Stipulation and Consent Order shall be null and void if the Board rejects any portion therein
31. Respondent specifically waives any claims that any disclosures made to the Board during its review of this Stipulation and Consent Order have prejudiced the right to a fair and impartial hearing in future hearings if this agreement is not accepted by the Board.
32. Respondent has read and reviewed this Stipulation and Consent Order and agrees that it contains the entire agreement between the parties.
33. Respondent is not under the influence of any drugs or alcohol at the time of signature.
34. Respondent voluntarily enters into this agreement after the opportunity to consult with legal counsel and is not being coerced into signing this Stipulation and Consent Order.
35. Respondent voluntarily waives the right to a contested hearing before the Board and waives any right to appeal from this Stipulation and Consent Order.
36. Respondent agrees that the Board may enter this Order.

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ORDER

Based on the Stipulation above, it is **ORDERED AND ADJUDGED** as follows:

- A. Respondent's Licensed Clinical Mental Health Counselor license is hereby **REPRIMANDED**.
- B. Respondent's Licensed Clinical Mental Health Counselor license is hereby **CONDITIONED** as follows:
 - 1. Respondent shall complete at her own expense the ACA "Boundary Issues in Perspective" course, or a comparable OPR-approved continuing education course within 90 days of ALO approval of this Stipulation and Consent Order. Respondent shall provide the OPR case manager with proof of successful course completion within 14 days of course completion.
 - 2. Respondent shall complete at her own expense the ACA "The New ACA 2014 Code of Ethics, An Overview" course, or comparable OPR-approved continuing education course within 90 days of ALO approval of this Stipulation and Consent Order. Respondent shall provide the OPR case manager with proof of successful course completion within 14 days of course completion.
- C. Respondent shall pay a **MONETARY CIVIL PENALTY IN THE AMOUNT OF THREE-HUNDRED DOLLARS (\$300.00)**. This penalty shall be paid within 90 days of the date of entry of this Order.
- D. Notwithstanding any provision above, Respondent must continue to meet all requirements for license application, maintenance, renewal, and reinstatement.
- E. This Stipulation and Consent Order is a matter of public record and may be reported to other licensing authorities as provided in 3 V.S.A. §129(a).
- F. This Stipulation and Consent Order shall remain part of Respondent's file and may be used for purposes of determining sanctions in any future unlicensed practice or disciplinary matter.

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AGREED TO:

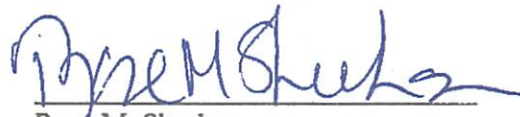
STATE OF VERMONT
SECRETARY OF STATE

Dated: 10/21/19

By: 
Aaron Kisicki
Prosecuting Attorney

ROSE M. SHEEHAN
RESPONDENT

Dated: 10/17/2019


Rose M. Sheehan

APPROVED AS TO FORM ONLY:

BRICE SIMON, ESQ.
RESPONDENT'S COUNSEL

Dated: 10/17/19


Brice Simon, Esq.

APPROVED AND SO ORDERED:

Dated: Nov 21, 2019 By: 
acting Chairperson

Date of Entry: Nov 21, 2019

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